

25STCV34553 25STCV34553

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-08-06

Motion: MOTIONS BY DEFENDANT LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION [CRS Nos. 1028, 3616, 9867, and 2551]

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Case Number: 25STCV34553 Hearing Date: August 6, 2026 Dept: 731

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

JOSE PEREZ RODRIGUEZ and JOSE

MELENDEZ,

Plaintiffs,

vs.

LOS ANGELES COUNTY METROPOLITAN
TRANSPORTATION AUTHORITY; and DOES 1 through 50, inclusive,

Defendants.

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CASE NO: 25STCV34553

[TENTATIVE] ORDER RE: MOTIONS

BY DEFENDANT LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION [CRS Nos. 1028,
3616, 9867, and 2551]

Dept. 731

August 11, 2026

8:30 a.m.

Matter No. 15

Moving Party: Defendant, Los Angeles County Metropolitan Transit
Authority

Opposing Party: None

Notice: OK

1. Factual

Background

Before the Court are Defendant Los

Angeles County Metropolitan Transportation Authority's (the "MTA") (1) motion to compel initial discovery responses and production from Plaintiffs Jose Perez Rodriguez and Jose Melendrez in relation to Requests for Production of Documents ("RFP"), Set One, and (2) motion to deem as admitted the truth of the matters in Requests for Admission ("RFA"), Set One, served by the MTA on Plaintiffs. Each of the four motions also seeks an award of \$600.00 in monetary sanctions as against Plaintiff and counsel.

The MTA served all four motions on

Plaintiff via email to Plaintiffs' counsel, where the recipient email address matches the email address in Plaintiff's pleadings. (Compare Motion, Proof of Service [service at ], with Complaint, p. 1 at EMAIL ADDRESS [same address].)

No opposition appears in the record.

2. Motion

to Compel Initial Responses and Production to RFP, Set One

A motion to compel an initial responses to production requests can be made on the ground that a party did not serve a timely response to requests for production of documents. (Code Civ. Proc., § 2031.300, subd. (a).) To establish grounds for relief, a movant must show (1) proper service (*id.* at § 2031.040), (2) expiration of the deadline to respond (*id.* at § 2031.260, subds. (a), (b)), and (3) no timely response (*id.* at § 2031.300, subd. (a), *et seq.*).

After review, the Court finds in favor of the MTA.

Here, the MTA's papers show:

(1) Proper service (May 27, 2026, Motions [CRS Nos. 9867 and 2551], Ward Decl., ¶ 2, Ex. A, Proof of Service [service at ]); and

(2)-(3) Nonresponse by Plaintiffs

after expiration of the response deadlines (May 27, 2026, Motions [CRS Nos. 9867 and 2551], Ward Decl., ¶¶ 3-7 [extensions and non-response], Exs. B-C [email threads]).

No opposition appears in the record to dispute this position.

Accordingly, the MTA's motion is GRANTED.

The Court similarly GRANTS the MTA's requests for sanctions as against Plaintiff and counsel of record, Parham Javaherizadeh, Esq., in the total amount of \$1,200.00, pursuant to Code of Civil Procedure section 2031.300, subdivision (c)—\$600.00 per motion—which are properly supported by Plaintiff's non-response to the served discovery and by counsel's declaration attached to the moving papers. (May 27, 2026, Motions [CRS Nos. 9867 and 2551], Ward Decl., ¶¶ 3-7, Exs. B-C [extensions and non-response], 8-9 [support for sought-after fee rate and hours reasonably expended].)

3. Motion

to Deem as Admitted the Truth of Matters in RFA, Set One

A motion to deem as admitted the truth in matters specified in requests for admission may be made on the grounds that requests for admission have gone unanswered or that responses to the requests were served late or are unverified. (See Code Civ. Proc., §§ 2033.240, subd. (a) [RFA responses must be signed by responding party under oath], 2033.280, subd. (b) [basis for motion]; *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636 (*Appleton*) [unsworn response to RFAs is treated like no response].) These requests are not automatically deemed admitted; the discovery party must make the motion. (See Code Civ. Proc., § 2033.280, subd. (b).)

To establish grounds for relief, a movant must show: (1) proper service (see Code Civ. Proc., § 2033.070), (2) expiration of the deadline for the initial response 30 days after service or on date agreed to by parties (see *id.* at § 2033.250, subds. (a), (b)), and (3) no timely response (see *id.* at § 2033.280, subd. (b)), a late

response (ibid.), or unsworn response (Appleton, supra, 206 Cal.App.3d at p. 636).

After review, the Court finds in favor of the MTA.

Here, the MTA's papers show:

(1) Proper service (May 27, 2026, Motions [CRS Nos. 1028 and 3616], Ward Decl., ¶ 2, Ex. A, Proof of Service [service at ]); and

(2)-(3) Nonresponse by Plaintiffs after expiration of the response deadlines (May 27, 2026, Motions [CRS Nos. 1028 and 3616], Ward Decl., ¶¶ 3-7 [extensions and non-response], Exs. B-C [email threads]).

No opposition appears in the record to dispute this position.

Accordingly, the MTA's motion is GRANTED.

The Court similarly GRANTS the MTA's requests for sanctions as against Plaintiff and counsel of record, Parham Javaherizadeh, Esq., in the total amount of \$2,400.00, pursuant to Code of Civil Procedure section 2033.280, subdivision (c)—\$600.00 per motion—which are properly supported by Plaintiff's non-response to the served discovery and by counsel's declaration attached to the moving papers. (May 27, 2026, Motions [CRS Nos. 1028 and 3616], Ward Decl., ¶¶ 3-7, Exs. B-C [extensions and non-response], 8-9 [support for sought-after fee rate and hours reasonably expended].)

Defendant Los Angeles County Metropolitan Transportation Authority is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be

placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: August 11, 2026 _____

MARK C. KIM

Judge of the
Superior Court